

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUWT056925: STEVE RANDALL vs NATREN INC
08/11/2026 in Department 43
Special Motion to Strike Portions of the First Amended Complaint CCP 425.16**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion to Strike Portions of FAC (C.C.P. § 425.16)

Tentative Ruling: Steve Randall's Motion to Strike Portions of Defendants' First Amended Complaint is GRANTED. (Code Civ. Proc. §425.16).

Paragraphs 289 and 290 of the First Amended Complaint (FAC) seek recovery of "litigation-related expenditures" related to Defendant Randall's "baseless wrongful-termination, whistleblower and failure-to-accommodate claims." While the FAC Eighth Cause of Action for Corporate Waste alleges conduct that is not arguably protected activity – outsourcing accounting and concealing those costs, failing to migrate its technology platform, causing overpayment of commissions, etc. (FAC at ¶¶280, 283, 284, 286) – paragraphs 289 and 290 are directly connected to Randall's litigation "claims". Moving party meets its burden of showing that the challenged claim arises from protected (litigation) activity. (Code Civ. Proc. § 425.16(b)(1); *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384–385.

In opposition, Natren offers no compelling basis for the Court to find that it will prevail on this theory. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384–385.) The court notes that Natren states that the showing is based on the “supporting record” but Natren does not offer that record.

Paragraphs 289 and 290 of the FAC are ordered stricken. The prayer of the complaint does not specifically address relief related to litigation costs and thus nothing in the prayer is stricken.

Moving party entitled to fees on a noticed motion requesting same. (Code Civ. Proc., §425.16(c)(1).)

Moving party is ordered to serve notice of the Court’s ruling.